

Tentative Rulings
September 21, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: As of January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the Department if you need this form. Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

16. *Santamaria v. Gulf Harbour Investments Corp.*, Case No. CIVSB2519211
Defendant's Demurrer to Second Amended Complaint
9/21/26, 9:00 a.m., Dept. S-17

Tentative Rulings

The Court would again **SUSTAIN**, but this time without leave to amend.

Case Summary

This is, in essence, an unjust enrichment case. Plaintiff alleges that he financed three properties in the City of Ontario (collectively, the Subject Property) for the purpose renting them out. He had a first loan and a second junior loan. Eventually, the second loan was purchased by Defendant Gulf Harbour, who later initiated foreclosure. The at-issue property was subject to a nonjudicial trustee's sale on September 8, 2021, but the sales amount was insufficient to pay off the first senior loan; thus, the debt remained an outstanding encumbrance against the Subject Property following the sale.

Plaintiff alleges that, through all of this, he never received any notices regarding the sale and thus continued paying the mortgage on the senior loan. He also states he was motivated to continue making those mortgage payments to preserve his credit. He made those payments for a total of 17 months, from September 2021, through January 30, 2023. Plaintiff asserts he did *not* receive the Notice of Default, Notice of Trustee's Sale, Trustee's Deed Upon Sale, or any Notice to Quit prior to the beginning of eviction proceedings. Thus, he asserts a lack of prior notice and a mistaken belief of continued ownership.

Relevant to the inquiry of notice, however, in April of 2022, Plaintiff's tenants informed him that a realtor had visited the subject property to take photographs. Then, on May 4, 2022, a tenant provided Plaintiff with a copy of any unlawful detainer action, which asserted ownership adverse to Plaintiff. Plaintiff obtained a June 10, 2022, Preliminary Title Report that confirmed a trustee's sale had occurred and that title had been transferred to Defendant Gulf Harbour.

As such, he first filed suit on July 2, 2025. However, after two earlier sustained demurrers, Plaintiff filed a Second Amended Complaint (SAC) on June 9, 2026, alleging causes of action for (1) unjust enrichment/restitution and (2) money had and received. This third demurrer followed.

Analysis

In this case, Defendant largely asserts that the two causes of action are time-barred by the relevant statutes of limitation. Importantly, the initial complaint was not filed until July 2, 2025.

Unjust Enrichment (First Cause): For unjust enrichment based on fraud or mistake is three years from the date of discovery. (*Federal Deposit Ins. Corp. v. Dintino* (2008) 167 Cal.App.4th 333, 348.) Here, Defendant argues that Plaintiff discovered the foreclosure on May 4, 2022, when he received the unlawful detainer action, which he later confirmed by Preliminary Title Report issued on June 10, 2022. The suit, however, was filed on *July 2, 2025*, beyond the 3-year period. Plaintiff does not address the issue that this case is time-barred. Thus, the Court would sustain. Further, given that Plaintiff has been given multiple opportunities to address this time bar, the Court would sustain *without* leave to amend.

Money Had and Received (Second Cause): For a cause for money had and received, a cause of action “lies wherever one person has received money which belongs to another, and which in equity and good conscience should be paid over to the latter.” (*Gutierrez v. Girardi* (2011) 194 Cal.App.4th 925, 937, quoting *Schultz v. Harney* (1994) 27 Cal.App.4th 1611, 1623.)

Generally, the statute of limitations for a money had and received claim is two years. (Code Civ. Proc., § 339.) However, where money had and received was the result of fraud or mistake a three-year statute applies. (FAC, ¶155; *Creditors Collection Serv. v. Castaldi* (1995) 38 Cal.App.4th 1039, 1043 [fraud being the basis of the legal injury].)

Again, Defendant argues discovery as of May 4, 2022, later confirmed by a June 10, 2022, Title Report. Thus, initially, the two-year statute of limitations would have run in May of 2024. However, even if viewed in the context of mistake and a three-year statute of limitation, the statute would have run in May of 2025; again, this is before the date the initial complaint was filed in July of 2025.

Here, the common count cause of action is predicated upon contractual duty to pay the senior mortgage. Thus, it appears the two-year statute of limitations applies. The complaint alleges that the subject mortgage payments were made between September 2021 through January 30, 2023. The SAC also alleges that Defendant Gulf Harbour eventually sold the subject property the same month. Thus, without any additional facts, it appears the statute of limitations ran on January 30, 2025. Yet, the initial complaint was not filed until July 2, 2025.

Although Plaintiff appears to allege in the SAC the delayed discovery rule applies and there is a three-year statute of limitations, Plaintiff admittedly learned of the foreclosure when Plaintiff was served with the unlawful detainer action on May 4, 2022, and then confirmed via the preliminary title report on June 10, 2022, more than three years prior to filing this lawsuit. Accordingly, the statute of limitations has run, regardless of whether a two year or three-year statute of limitations applies.

Equitable Estoppel: The elements of equitable estoppel are (1) the party to be estopped must be apprised of the facts; (2) he must intend that his conduct be acted upon or must so act that the party asserting the estoppel has a right to believe it was so intended; (3) the other party must be ignorant of the true states of the facts; and (4) he must rely upon the conduct to his injury. (*Schafer v. City of Los Angeles* (2015) 237 Cal.App.4th 1250, 1261, citing and quoting *Strong v. Co. of Santa Cruz* (1975) 15 Cal.3d 720, 425.)

Here, Plaintiff makes no allegation that Defendant said or did anything to make Plaintiff believe he did not need to bring a timely lawsuit to recover money he paid to the senior loan. He was aware of the foreclosure and knew he was not the title owner as of May 2022. At no point does Plaintiff allege there was any indication money he paid to the senior lender would be returned to him by Defendant if the foreclosure was unsuccessful. Thus, it does not appear that equitable estoppel applies.
